

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 24, 2026
8:30 AM/1:30 PM

5. ALISHA HERRMANN V. PATRICK HERRMANN

26FL0433

On June 25, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders, support orders, attorney's fees, and property orders. She filed her Income and Expense Declaration concurrently therewith. There is no Proof of Service for the moving papers or any of the required supporting documents, nevertheless, Respondent has filed a response to the RFO thereby waiving any potential defect in service.

Respondent filed and served his Responsive Declaration to Request for Order and his Income and Expense Declaration on August 5, 2026. He filed a UCCJEA declaration the same day asserting paternity of the minor.

Petitioner has not filed a reply declaration.

The parties attended Child Custody Recommending Counseling (CCRC) on August 6, 2026 and were able to reach agreements on all custody and visitation issues. A report with those agreements was prepared on August 6th and mailed to the parties on August 7th.

Petitioner is requesting guideline spousal and child support. She requests primary physical custody of the minor and asks that Respondent have parenting time one evening after work during the week and one full day each weekend. She asks that Respondent be ordered to pay Petitioner's outstanding medical debt and that he be ordered to pay for Petitioner's ongoing medical needs and expenses. She asks that the parties be ordered to set a date for Petitioner to retrieve her personal property and that of the minor from the marital residence without Respondent present. Finally, she is requesting \$5,000 in attorney's fees, and all other orders as deemed appropriate by the court.

Respondent opposes Petitioner's requests and instead asks for a 2-2-3 parenting plan. He further asks that the minor be enrolled in Sliva Valley Elementary School in El Dorado Hills, and that she receive all vaccinations required for her to do so. He does not oppose guideline support but asks that he be credited for payments made to Petitioner since the date of the Petition for Dissolution on May 6, 2026. He asks that Petitioner be ordered to participate in a vocational evaluation and that she be ordered to seek fulltime employment submitting 5 applications per week and providing Respondent proof thereof. Finally, he requests a *Gavron* warning and asks that each party bear their own attorney's fees.

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After reviewing the filings as outlined above, the court finds the agreements contained in the August 6, 2026 CCRC report to be in the best interests of the minor and they are hereby adopted as the orders of the court.

Regarding the personal property items, the parties are ordered to meet and confer to select a date(s)/time(s) that are agreeable to both parties for Petitioner to access the residence. Prior to the time of retrieval, the parties are to meet and confer and agree upon list of items Petitioner will retrieve. The parties are to arrange a neutral third party to be present at the time Petitioner retrieves the agreed upon property. This may be law enforcement or some other individual as agreed upon by the parties. Respondent shall not be present while Petitioner is on the property. The third party observer may not interfere with Petitioner's retrieval of the property but may document it either in writing or video.

Respondent's request for a vocational evaluation is granted. Respondent shall provide Petitioner with the names of three evaluators no later than October 1st. Petitioner shall pick one of the three names and inform Respondent of her selection no later than October 8th. Respondent shall bear the entire cost of the evaluation subject to reallocation.

The court is reserving on Respondent's request to order Petitioner to seek fulltime work and issue a *Gavron* warning until after receipt of the vocational evaluation as it is unclear to the court if Petitioner has the ability to work fulltime given her medical condition. A review hearing is set for Thursday January 7th, 2027, at 8:30am for receipt and review of the vocational evaluation.

Regarding support, utilizing the same figures as outlined attached Xspouse report, the court finds that child support is \$1,199 per month and spousal support per the Alameda formula is \$1,360 per month. See attached Xspouse report. The court adopts the attached Xspouse report and orders Respondent to pay Petitioner \$2,559 per month as and for child support and temporary spousal support, payable on the 1st of the month until further order of the court or legal termination. This order is effective as of July 1, 2026.

The court finds the above order results in arrears in the amount of \$7,677 through and including September 1, 2026. The court orders Respondent pay Petitioner \$639.75 on the 15th of each month commencing on October 15, 2026 and continuing until paid in full (approximately 12 months). If a payment is late or missed the remaining balance is due in full with legal interest within five (5) days.

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In addition to the aforementioned support, Respondent is ordered to make the monthly payments on Petitioner's medical expenses incurred prior to the date of separation. These payments are subject to reallocation at the time of trial.

Regarding the ongoing medical expenses and medical expenses incurred after the date of separation, "[d]ebts incurred by either spouse for the common necessities of life of either spouse...in the absence of a court order or written agreement for support or for the payment of these debts, shall be confirmed to either spouse according to the parties' respective needs and abilities to pay at the time the debt was incurred." Here, from the date of separation until the date of this ruling, there was no order for support. That, coupled with the fact that medical bills are quite clearly debts for the necessities of life, means that those debts are to be confirmed to the spouse with the greater ability to pay. Respondent is therefore ordered to pay for Petitioner's medical expenses that were incurred after the date of separation but prior to the date of the support order. From the date of the support order forward, Petitioner is ordered to pay the costs of her own medical expenses. All payments for medical expenses are subject to reallocation at trial.

Turning to the request for attorney's fees, the request is denied. In the face of a request for need-based attorney's fees and costs, the court is to make findings on "whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." Fam. Code § 2030(a)(2). Here, even with the court ordered support, a disparity in income does remain. Nevertheless, because Respondent is being ordered to pay the monthly costs of Petitioner's medical expenses that were incurred prior to the date of separation, the court finds that Respondent does not have the ability to pay for both his fees and those of Petitioner's attorney. As such, the request is denied.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #5: AFTER REVIEWING THE FILINGS AS OUTLINED ABOVE, THE COURT FINDS THE AGREEMENTS CONTAINED IN THE AUGUST 6, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINOR AND THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT.

REGARDING THE PERSONAL PROPERTY ITEMS, THE PARTIES ARE ORDERED TO MEET AND CONFER TO SELECT A DATE(S)/TIME(S) THAT ARE AGREEABLE TO BOTH

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PARTIES FOR PETITIONER TO ACCESS THE RESIDENCE. PRIOR TO THE TIME OF RETRIEVAL, THE PARTIES ARE TO MEET AND CONFER AND AGREE UPON LIST OF ITEMS PETITIONER WILL RETRIEVE. THE PARTIES ARE TO ARRANGE A NEUTRAL THIRD PARTY TO BE PRESENT AT THE TIME PETITIONER RETRIEVES THE AGREED UPON PROPERTY. THIS MAY BE LAW ENFORCEMENT OR SOME OTHER INDIVIDUAL AS AGREED UPON BY THE PARTIES. RESPONDENT SHALL NOT BE PRESENT WHILE PETITIONER IS ON THE PROPERTY. THE THIRD PARTY OBSERVER MAY NOT INTERFERE WITH PETITIONER'S RETRIEVAL OF THE PROPERTY BUT MAY DOCUMENT IT EITHER IN WRITING OR VIDEO.

RESPONDENT'S REQUEST FOR A VOCATIONAL EVALUATION IS GRANTED. RESPONDENT SHALL PROVIDE PETITIONER WITH THE NAMES OF THREE EVALUATORS NO LATER THAN OCTOBER 1ST. PETITIONER SHALL PICK ONE OF THE THREE NAMES AND INFORM RESPONDENT OF HER SELECTION NO LATER THAN OCTOBER 8TH. RESPONDENT SHALL BEAR THE ENTIRE COST OF THE EVALUATION SUBJECT TO REALLOCATION.

THE COURT IS RESERVING ON RESPONDENT'S REQUEST TO ORDER PETITIONER TO SEEK FULLTIME WORK AND ISSUE A GAVRON WARNING UNTIL AFTER RECEIPT OF THE VOCATIONAL EVALUATION AS IT IS UNCLEAR TO THE COURT IF PETITIONER HAS THE ABILITY TO WORK FULLTIME GIVEN HER MEDICAL CONDITION. A REVIEW HEARING IS SET FOR THURSDAY JANUARY 7TH, 2027, AT 8:30 AM IN DEPARTMENT 5 FOR RECEIPT AND REVIEW OF THE VOCATIONAL EVALUATION.

REGARDING SUPPORT, UTILIZING THE SAME FIGURES AS OUTLINED ATTACHED XSPOUSE REPORT, THE COURT FINDS THAT CHILD SUPPORT IS \$1,199 PER MONTH AND SPOUSAL SUPPORT PER THE ALAMEDA FORMULA IS \$1,360 PER MONTH. SEE ATTACHED XSPOUSE REPORT. THE COURT ADOPTS THE ATTACHED XSPOUSE REPORT AND ORDERS RESPONDENT TO PAY PETITIONER \$2,559 PER MONTH AS AND FOR CHILD SUPPORT AND TEMPORARY SPOUSAL SUPPORT, PAYABLE ON THE 1ST OF THE MONTH UNTIL FURTHER ORDER OF THE COURT OR LEGAL TERMINATION. THIS ORDER IS EFFECTIVE AS OF JULY 1, 2026.

THE COURT FINDS THE ABOVE ORDER RESULTS IN ARREARS IN THE AMOUNT OF \$7,677 THROUGH AND INCLUDING SEPTEMBER 1, 2026. THE COURT ORDERS RESPONDENT PAY PETITIONER \$639.75 ON THE 15TH OF EACH MONTH COMMENCING ON OCTOBER 15, 2026 AND CONTINUING UNTIL PAID IN FULL (APPROXIMATELY 12 MONTHS). IF A PAYMENT IS LATE OR MISSED THE REMAINING BALANCE IS DUE IN FULL WITH LEGAL INTEREST WITHIN FIVE (5) DAYS.

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IN ADDITION TO THE AFOREMENTIONED SUPPORT, RESPONDENT IS ORDERED TO MAKE THE MONTHLY PAYMENTS ON PETITIONER'S MEDICAL EXPENSES INCURRED PRIOR TO THE DATE OF SEPARATION. THESE PAYMENTS ARE SUBJECT TO REALLOCATION AT THE TIME OF TRIAL.

RESPONDENT IS FURTHER ORDERED TO PAY FOR PETITIONER'S MEDICAL EXPENSES THAT WERE INCURRED AFTER THE DATE OF SEPARATION BUT PRIOR TO THE DATE OF THE SUPPORT ORDER. FROM THE DATE OF THE SUPPORT ORDER FORWARD, PETITIONER IS ORDERED TO PAY THE COSTS OF HER OWN MEDICAL EXPENSES. ALL PAYMENTS FOR MEDICAL EXPENSES ARE SUBJECT TO REALLOCATION AT TRIAL.

TURNING TO THE REQUEST FOR ATTORNEY'S FEES, THE REQUEST IS DENIED AS RESPONDENT DOES NOT HAVE THE ABILITY TO PAY THE FEES OF BOTH PARTIES.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

Fixed Shares	Father	Mother	Monthly figures	Cash Flow		
#of children	0	1	2026		Guideline	Proposed
% time with NCP	49.99 %	0.00 %		Comb. net spendable	10134	10134
Filing status	MFJ->	<-MFJ	GUIDELINE	Percent change	0%	0%
# exemptions	1 *	2 *	Nets(adjusted)	Father		
Wages+salary	11244	0	Father	8292	Payment cost/benefit	-2559
Self-employed income	0	0	Mother	1843	Net spendable income	5732
Other taxable income	0	2122	Total	10134	Change from guideline	0
TANF+CS received	0	0	Support		% of combined spendable	57%
Other nontaxble income	0	0	Addons	0	% of saving over guideline	0%
New spouse income	0	0	Guideln CS	1199	Total taxes	2486
401(k) employee contrib	0	0	Alameda SS	1360	Dep. exemption value	0
Adjustments to income	0	0	Total	2559	# withholding allowances	0w
SS paid prev marriage	0	0	-		Net wage paycheck	8531
CS paid prev marriage	0	0			Mother	
Health insurance	466	0			Payment cost/benefit	2559
Other medical expense	0	0			Net spendable income	4402
Property tax expense	0	0			Change from guideline	0
Ded interest expense	0	0	Proposed		% of combined spendable	43%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%
Misc tax deductions	0	0	CS	1199	Total taxes	279
Qual bus income ded	0	0	SS	1360	Dep. exemption value	0
Required union dues	0	0	Total	2559	# withholding allowances	0w
Mandatory retirement	0	0			Net wage paycheck	0
Hardship deduction	0 *	0 *	Saving	0		
Other GDL deductions	0	0	Releases	0		
Child care expenses	0	0				

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: ON

Per Child Information	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	49 - 51	0	0	0	Father	1199	Father	1199	Father
	49 - 51	0	0	0	Father	1199	Father	1199	Father

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6. JON WATSON V. ASHLEY ROOT

26FL0535

Petitioner filed a Request for Order (RFO) seeking child custody and parenting plan orders, on June 24, 2026. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on August 13, 2026, and a review hearing on September 24, 2026. Respondent was served the required documents on June 29, 2026.

Respondent filed a Responsive Declaration and Declaration in Support on August 6, 2026. Both were served on Petitioner the same day.

Both parties appeared at CCRC and reached a full agreement. A report with the parties' agreement was prepared on August 13, 2026.

The court has read and considered the filings as outlined above. The court finds the agreement of the parties to be in the best interest of the minor. The court adopts the agreement as set forth in the August 13th CCRC report.

All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #6: THE COURT FINDS THE AGREEMENT OF THE PARTIES TO BE IN THE BEST INTEREST OF THE MINOR. THE COURT ADOPTS THE AGREEMENT AS SET FORTH IN THE AUSTU 13TH CCRC REPORT.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON